

STATE OF NEW YORK

3799--C

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2025-2026 Regular Sessions

IN SENATE

January 30, 2025

Introduced by Sens. COMRIE, HOYLMAN-SIGAL, SEPULVEDA -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading -- again amended and ordered reprinted, retaining its place in the order of third reading -- passed by Senate and delivered to the Assembly, recalled, vote reconsidered, restored to third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the real property actions and proceedings law, in relation to access to adjoining property to make improvements or repairs

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 881 of the real property actions and proceedings
2 law, as added by chapter 220 of the laws of 1968, is amended to read as
3 follows:

4 § 881. Access to adjoining property to make improvements or repairs.

5 1. As used in this section: (a) the term "document" shall include but
6 not be limited to copies of any plans, specifications, surveys, engi-
7 neering reports or evidence of insurance for the work to be performed on
8 adjoining property;

9 (b) the term "licensee" shall refer to the owner or lessee, as appli-
10 cable, who seeks entry onto an adjoining property;

11 (c) the term "adjoining owner" shall refer to the owner or its lessee
12 of the property adjoining that of the licensee;

13 (d) the term "refuse", "refusal", or "refused" shall be deemed to
14 include instances where more than one written notice has been served, by
15 certified mail, on the owner and has not been responded to within sixty
16 days;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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(e) the term "state entity" shall refer to the metropolitan transportation authority, or its affiliate or subsidiary agencies.

2. When ~~[an owner or lessee]~~ a licensee seeks to make improvements or repairs to real property so situated that such improvements or repairs cannot be made by the ~~[owner or lessee]~~ licensee in a commercially reasonable manner without entering the premises of an adjoining owner ~~[or his lessee]~~, other than a state entity, and permission so to enter has been refused, the ~~[owner or lessee seeking to make such improvements or repairs]~~ licensee may commence a special proceeding for a license so to enter pursuant to article four of the civil practice law and rules. The petition and affidavits, if any, shall state the facts making such entry necessary and the date or dates on which entry is sought. Any adjoining owner named as a party in such proceeding shall, at the request of the licensee, provide such licensee with such information as shall allow the licensee to identify the lessees of the adjoining owner and join them in the proceeding. Such license shall be granted by the court in an appropriate case and upon such other terms as justice requires. The licensee shall be liable to the adjoining owner ~~[or his lessee]~~ for actual damages occurring as a result of the entry.

3. The purposes for which a licensee may seek permission to enter an adjoining property pursuant to this section may include:

(a) Preconstruction survey to document the existing conditions of the adjoining property;

(b) The installation, maintenance, inspection, repair, replacement and/or removal of: (i) vibration, crack or optical monitoring devices on or within any existing improvements on the adjoining property; (ii) sheds, bridges, netting or other protective covering over the roof, facades, windows, skylights, mechanical equipment, chimneys or other exterior portions of buildings or yards, walkways, driveways or other open areas on the adjoining property; (iii) scaffolding on or over the adjoining property; (iv) sheeting, shoring, bracing or other retaining structures needed for demolition, support or excavation; (v) where required by code, regulation or local law, any necessary foundation or building supports, including, wall ties, tie-backs, anchors, straps and underpinning, for any demolition, new or existing improvements on the premises of the licensee or adjoining owner, including, party walls; or (vi) flashing, sealing or other materials or equipment needed to establish the weather-proof integrity of any wall, foundation or other exterior portion of a building on the adjoining property;

(c) Temporary projections or intrusions into the airspace of the adjoining property as necessary to complete the proposed improvements or repairs;

(d) Temporary or at the licensee's sole option permanent relocation, extension or offsetting of any chimneys, vents, flues, exhausts or other rooftop equipment on the adjoining property, as required by applicable law;

(e) Construction staging necessary to complete any work on the adjoining property; or

(f) The undertaking of such other measures as may be required by applicable law or good construction practice.

4. The grant of any permission pursuant to this section shall be subject to the following conditions:

(a) The exercise of any right of entry to the adjoining property shall be upon reasonable prior notice to the adjoining owner, as applicable and as the court may establish, except in cases of an emergency posing an immediate threat to the safety of persons or property;

1 (b) The duration of the license based on a good faith projection of
2 the dates and estimated duration of any entry to the adjoining property.
3 The licensee shall thereafter make commercially reasonable efforts to
4 adhere to such dates and durations and if unable to do so make a request
5 to the court for an extension of such license;

6 (c) Where permission includes a right to install, maintain, inspect,
7 repair, replace or remove any devices, structures, materials or equip-
8 ment on the adjoining property, the grantee licensee shall provide to
9 the adjoining owner, as applicable, copies of any relevant documents
10 prior to commencement of such work;

11 (d) The licensee and/or any contractor, consultant or agent thereof
12 that accesses the adjoining property pursuant to the license shall
13 procure and maintain commercial general liability insurance for damage
14 to persons or property, naming the adjoining owner and/or its lessee(s),
15 as applicable and made known to the licensee, as additional insureds, in
16 such amounts as are commercially reasonable for the entry to the adjoin-
17 ing property. The licensee shall provide the adjoining owner and its
18 lessees, as applicable, with relevant documents; and

19 (e) The licensee shall be required to reasonably compensate the
20 adjoining owner for the loss of use and enjoyment of the adjoining prem-
21 ises including diminution in value.

22 5. The court, in granting a license or otherwise resolving a proceed-
23 ing brought pursuant to this section, shall be authorized to:

24 (a) consider evidence that either party failed to comply with the
25 terms of any existing or previously existing license respecting the same
26 property;

27 (b) obligate the licensee to reimburse the adjoining owner for reason-
28 able fees incurred in connection with the review of relevant documents
29 for the installation, maintenance, inspection, repair, replacement or
30 removal of devices, structures, materials or equipment on the adjoining
31 property; and

32 (c) insure for damage to property and persons if there is unique,
33 physical occurrence causing physical damage to property or persons
34 caused by the access.

35 6. Notwithstanding subdivision five of this section, where the adjoin-
36 ing property to which the licensee seeks access is owned, leased or
37 otherwise occupied by a state entity, the court shall not grant a
38 license.

39 § 2. The real property actions and proceedings law is amended by
40 adding a new section 882 to read as follows:

41 § 882. Severability. If any provision of this article or the applica-
42 tion thereof to any person or circumstances is held invalid, the remain-
43 der of the article and the application of such provision to other
44 persons or circumstances shall not be affected thereby.

45 § 3. This act shall take effect immediately.